

23STCV10709 23STCV10709

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-09-11

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Case Number: 23STCV10709 Hearing Date: September 11, 2026 Dept: 513

Superior Court of California

County of Los Angeles – Central District

Department

513

VIDEO TECH SERVICES, INC.

;

Plaintiff,

vs.

ENCORE GROUP (USA) LLC

, et al.;

Defendants.

Case

No.:

23STCV10709

Hearing

Date:

September
11, 2026

Time:

10:00 a.m.

[tentative]

Order RE:

applicationS to appear pro hac vice

MOVING PARTY: Brenton M. Tunis and David S.
Shankman

RESPONDING PARTY: Unopposed

Applications to Appear Pro Hac Vice

The court

considered the moving papers filed in connection with these applications. No opposition papers were filed.

DISCUSSION

Brenton M. Tunis and David S. Shankman (collectively, "Applicants") request an order permitting them to appear as counsel pro hac vice in this action for defendant Encore Group (USA) LLC.

The court finds that the applications substantially comply with California Rules of Court, rule 9.40(d). (Cal. Rules of Court, rule 9.40(d); Tunis App., ¶¶ 1-6, Shankman App., ¶¶ 1-6.) However, Applicants fail to show they have served the State Bar at its San Francisco office because the proofs of service attached to the applications only show counsel for plaintiff was served. (Cal. Rules of Court, rule 9.40(c)(1).) The applications only state, "I will serve on the State Bar of California a copy of this Application and will remit payment representing the processing fee(s) contemplated by California." (Tunis App, ¶ 7; Shankman App., ¶ 7.) Applicants also fail to show they have paid the processing fees.

The court therefore denies Brenton M. Tunis and David S. Shankman's applications to appear pro hac vice, without prejudice to Brenton M. Tunis and David S. Shankman's filing new applications that comply with rule 9.40.

The court orders defendant Encore Group (USA) LLC to give notice of this ruling.

IT IS SO ORDERED.

DATED: September 11, 2026

Robert
B. Broadbelt III

Judge
of the Superior Court